

S02E05: Dissecting the Doctrine of Discovery: Indigenous Rights, White Supremacy, and the United Nations with Betty Lyons

Jordan Loewen-Colón ([00:00:09](#)):

Hello and welcome to the Mapping the Doctrine of Discovery Podcast. The producers of this podcast would like to acknowledge with respect the Onondaga Nation, Firekeepers of Haudenosaunee Confederacy, the Indigenous Peoples on whose ancestral lands Syracuse University now stands. And now introducing your host, Philip Arnold and Sandra Bigtree.

Philip P. Arnold ([00:00:30](#)):

Welcome to another episode of Mapping the Doctrine of Discovery. I'm Phil Arnold, Faculty in Religious Studies at Syracuse University and Core Faculty in Native American Indigenous Studies, the Founding Director of the Skä•noñh Center and the President of Indigenous Values Initiative.

Sandy Bigtree ([00:00:50](#)):

And I'm Sandy Bigtree. I'm on the Board of the Indigenous Values Initiative and also was on the Academic Collaborative of the Skä•noñh Great Law of Peace Center. I'm a citizen of the Mohawk Nation.

Philip P. Arnold ([00:01:03](#)):

Great. We're really, really happy today to have as our guest, the special guest, Betty Lyons, who we've known for decades really, but she's here in her capacity as President and Executive Director of the American Indian Law Alliance, which is an indigenous and environmental activist and citizen of the Onondaga Nation. Let me try that again.

([00:01:29](#)):

All right. Betty Lyons, President and Executive Director of the American Indian Law Alliance. AILA is an indigenous and environmental activist and citizen of the Onondaga Nation. Betty has worked for the Onondaga Nation for over 20 years. Ms. Lyons serves as a member of the Haudenosaunee External Relations Committee and has been an active participant in the annual United Nations Permanent Forum on Indigenous Issues since the first session in 2001 and as a delegate of the Onondaga Nation.

([00:02:05](#)):

Betty continues to work for the protection of indigenous peoples who are fighting to protect their traditions, territories, resources, and care for mother earth. Out of her concern for indigenous peoples and mother earth, Betty serves on numerous boards like 4 The Future Foundation with the Thompson Brothers, Connie Hogarth Center, Center for Earth Ethics, The MOST, the Skä•noñh Great Law of Peace Center and the Academic Collaborative, and is a Co-chair of the Center of Earth Ethics Advisory Board. Welcome, Betty. Thanks for doing this. By the way, we're on the Onondaga Nation doing this interview today.

Betty Lyons ([00:02:49](#)):

Thank you. Thank you for having me. It's an honor and a pleasure to do this podcast. I'm glad that we're having these important discussions.

Philip P. Arnold ([00:03:00](#)):

I think we'll just start with, you are someone that's been involved in all levels of indigenous people's rights work all over the world, and I'm just curious to hear from you in a general way the status and the

interests around the Doctrine of Discovery that you hear from other indigenous peoples and how it affects your work in the international arena.

Betty Lyons ([00:03:27](#)):

I think it's so important to get this information out, and what I've noticed over the years is kind of a complacency, even among our own folks about the Doctrine of Discovery at the UN level, in particular. When my aunt Tonya Gonnella Frichner, who was the executive director of the American Indian Law Alliance, put in a report, the preliminary report, excuse me, on the Doctrine of Discovery in 2010, I noticed rather quickly that other indigenous nations, and I would even say the special repertoires of the permanent form on indigenous issues very quickly didn't want to hear about it again after the first couple of years of us talking about it. It made me feel very bewildered. I couldn't understand why they would want to hide this information or why wouldn't they want to talk about it, or maybe it was because they didn't understand the full impact of the doctrine and how important it is for us to try to dismantle it.

([00:04:53](#)):

They never saw that. They get it, I guess, is kind of how I felt about it. After all these years of even asking, my aunt first had asked for a full study, and then I have continued to ask for a full study since 2014 on this Doctrine of Discovery still has yet to be done. And so, I feel that if it's going to be done, it's going to have to be done by us. We can't leave it to the United Nations to do it because they don't have a vested interest in having this done, because then, it would make member states culpable, and they're the ones that are funding the United Nations. The US, Canada, Mexico, New Zealand, Australia, these are all the big financial backers of the UN. China, they're not going to want to have this information come out because then they might actually have to do something about it.

Sandy Bigtree ([00:05:55](#)):

It's the hierarchical structure that's embedded on a world scale and it'll start falling apart once you start unpacking it all. That is the Doctrine of Discovery. It's that hierarchical system that was really set in place in the United States exponentially in a matter of just a couple hundred years. The destruction and the power that the United States gained as a world power was enabled through this Doctrine of Discovery structure of hierarchy.

Betty Lyons ([00:06:35](#)):

Yes, it's really a construct of domination and it's the domination and hierarchical system of absolutely everything. It's the domination of indigenous peoples, peoples of color, land, all the other living beings on this earth. It's what started, I always say, the transatlantic slave trade. It helped to create all of the boarding schools, this white supremacy, these ideas and thoughts that you are somehow better and that we aren't equal to all other peoples by the mere fact of us being indigenous and that they had a right to dominate. It gave them moral authority to be able to dominate over absolutely everything. How do you unwind and peel that rotten onion back when these people are used to having this power and control, they benefit from it. And so, in order to take it down or deconstruct it, they're going to lose that power, authority, and control over things. They're not going to want that to happen.

Philip P. Arnold ([00:07:51](#)):

I really appreciate you hanging in there, too. This is a very stressful work that you're involved with at the UN. I just wanted to say that, acknowledge that, because it's not easy to have to deal with these dominating powers who are used to being in charge. Of course, all of this goes back to the church. Religion, it's very important to acknowledge that this domination code, as Steve Newcomb calls it, is something that goes right back to the Vatican, who is one of the member states at the UN. Maybe you could explain a little about that, because I think a lot of people don't realize just how powerful the church is in these international institutions.

Betty Lyons ([00:08:40](#)):

They're extremely powerful. They hold a lot of weight just by their mere presence, even without them having to speak on the floor, which I will say that they certainly do interject their thoughts and their viewpoint on all matters, but in particular, indigenous matters. However, they tread very lightly when it comes to our forums and then not speaking publicly about it. Usually, they're absent, and so they do their work behind the scenes. They're a very calculating group. I don't know how else to say that. They're very calculating and manipulating, and they know how the system works. They know how it operates, and they know what to do to get to all these member states to get exactly what they want.

([00:09:34](#)):

And so, sitting back as an indigenous person, not knowing the construct of the United Nations when I first started going over 20 years ago, trying to figure out how do you figure this out? If you don't understand from the beginning the hierarchal construct, if you don't understand that going in, you're running on a wheel to catch up. That doctrine, that preliminary study didn't come out until 2010 long after we had started going in 2001.

([00:10:08](#)):

And so, what I'm saying, it wasn't like the realization that this was the construct that we were working under. How do you revolve around that? How do you circumvent these people? It's like a high stake scheme of chess, and it's about utilizing one member state against another member state because if you're expecting them to do the right thing, because it's the right thing to do, you can forget it. It's not going to happen. They don't really care about indigenous peoples unless it makes them look good. That's usually the angle that they live on.

([00:10:45](#)):

And so, the Vatican totally understands that. They come in and they weave in and out, and I've done some statements, we've made interventions, and you go to try to deliver them to them and they will refuse them. There is not even a conversation to be had. You can't ask them for a meeting to talk about it in any kind of meaningful way, because I believe that it's easier to go against somebody if you don't acknowledge their humanity. If you're not having a conversation and acknowledge that person is human equal to you, it's a lot easier to keep you held down in a dominated position. They can stand over you as the oppressor.

Sandy Bigtree ([00:11:36](#)):

A hierarchical system is constructed to protect those at the top. The people that will readily recognize the doctrines of discovery are the indigenous peoples, because it has affected them most profoundly in the shortest amount of time. With the Declaration for the Rights of Indigenous people, finally, maybe you can talk about that.

Betty Lyons ([00:11:59](#)):

Yes.

Jordan Loewen-Colón ([00:11:59](#)):

How it came to be.

Betty Lyons ([00:12:00](#)):

Yes. It took so long, many, many years. I watched my aunt work, and Oren also worked on getting the United Nation Declaration on the Rights of Indigenous Peoples finished. That in and of itself, the wording, what was acceptable, what was deemed as unacceptable to member states, what was going to fly, it's always a diplomatic dance. Then, getting them to sign onto it. It was the 11th hour, I watched my Aunt lobby, the South African states in a room. She went in there and explained to them that without their vote in favor of it, it was never going to pass. It's still not a convention. It's still not what they call, it's soft law. Any member state can pick and choose what they want to follow or what they don't want to follow.

([00:13:01](#)):

I don't even like the term soft law. There are no legal ramifications if any member state chooses to not follow it. After all of this time, I sat and wondered, I've gone over every declaration the UN has ever made that is a legal construct of international law, and why did we need something separate? The Doctrine of Discovery made us less than human. We're not considered human beings. We're part of the flora and fauna, and of course, that's better company. I'd rather be identified with the flora and fauna than humans because I think we kind of stink.

([00:13:43](#)):

But at the end of the day, they have handfuls of these international legal constructs. Why did we need something separate? If we're considered equal to all other human beings, then why isn't the Declaration on Human Rights enough for us? Why isn't the Declaration on the Rights of a Child enough for us? I get so emotional about it. It makes me want to cry. Why is that? Because we're not seen as human. That was the whole construct and purpose of that doctrine.

([00:14:17](#)):

This is the only inevitable result. Everything that we're living under and living with that came, it was by design. It was designed that way. And so, it's frustrating to me that now, even though, yes, I think that it's a valuable construct, I don't understand why we needed it in the first place. It shouldn't have been necessary if we're equal to all others, but we're still not. Just recently, Spain indicated they called us forest dwellers. They still use these terms. This was last year, and it was through the Special Rapporteur's office for the rights and freedom of religion and belief that I found it, because they were having meetings and I was reading through the transcripts of what was said, the interventions that were made by different member states, and I was in shock. This was last year. We're not talking like 10, 20, 50 years ago. This is 365 days ago.

Philip P. Arnold ([00:15:32](#)):

Amazing. Just amazing. Maybe you could walk us through the S, indigenous peoples, because there are certain special, even though your question of why isn't international declaration on human rights

enough? There are some differences among indigenous peoples, and oftentimes people drop that S, can you talk to us and explain to the people here on that are listening the importance of that S?

Betty Lyons ([00:16:09](#)):

Yes. So we fought very hard for the UN to accept and understand that we were going to not only refer to ourselves, but expected them to refer to us as indigenous peoples. The S part of that being so important, because as you said, it's about understanding that there are so many around the world. There are over 500 million indigenous people around the world. And so, we all have distinct cultures. We all have distinct ceremonies, languages, and ways of being. That S is what says that. Otherwise, the people part of it, it's like you're an inanimate object. Suddenly, you're not a nation. You're not different groups of people. You're not a government. You are just a single person, an indigenous people. You're a singular. We have groups and nations, communities. That was the importance of that S because they keep trying to make us less than all other living beings. That was the importance of that S.

Philip P. Arnold ([00:17:29](#)):

Also, that everything is held together.

Betty Lyons ([00:17:32](#)):

Everything is held together.

Philip P. Arnold ([00:17:33](#)):

The people, the land, the non-human beings.

Betty Lyons ([00:17:37](#)):

The non-human beings. I think that's the biggest part that is so... Especially now when you're looking at climate change, even at the international level, and you're watching these member states, they still aren't connecting themselves to all other living beings. Again, it goes back to what Sandy was talking about, that hierarchical system, that hierarchical system of domination on all beings, including, so we're seeing equal to the flora and fauna. They're going to treat us and the flora and the fauna the same. That's exactly where that's at. They don't see it as our relatives, that we cannot live without all of these other living beings. They can live without us. They would thrive far better without us than with us. They don't see us as a family. The UN and all of these governments, modern governments, if you will, love to put everything in its own compartmentalized box.

([00:18:39](#)):

Nothing seems to touch. Everything is connected. That's the importance of the S that we are here as indigenous peoples to protect all of the living beings that can't speak for themselves. That's our mandate, that's our job, that's our responsibility. Everyone says, "Oh, you're an activist." I can't stand that word. We're not activists. That's not what we do. I don't have a choice. There's no choice. I didn't wake up and go, "Oh, today I'm going to decide I'm going to be an activist." No, I'm an indigenous woman and I have to defend this for my children and their children and their children, and I have to speak for those things that can't speak for themselves.

Sandy Bigtree ([00:19:20](#)):

A culture that is embedded in the earth and your identity stems from all the living organisms in the earth is perhaps beyond the comprehension of a culture that's living under this construct of hierarchy. You take the United States and the law is that indigenous people occupy the land. They can't live in the land. They can't own the land. What does that mean? The whole culture is that you're embedded in the land. There are so many constructs that are, I mean, you're going up against a wall, literally, and then the UN kind of mirrors a lot of the policies that have been set in the United States. It's going to take a lot to start deconstructing all of this, but it's for the betterment of mankind and for all the beings that inhabit this earth, that that seriously be addressed quickly, because we're running out of time.

Betty Lyons ([00:20:19](#)):

We are running out of time. We're past the tipping point. To your point, they do embed us with all other living beings. My question is always, why aren't you? They're like, "Oh." I get this, I've actually been called a tree hugger. It always makes me laugh. Yeah, and why aren't you? Why aren't you? Why don't you see that they are our relatives, that we can't exist without them? We're the ones facing extinction. Mother earth is going to regenerate. She's going to get rid of us. We're not living up to our responsibilities. What are you going to do? You're going to say that where is this process of white supremacy and domination going to take you? What do you think, you're going to really live on Mars?

([00:21:11](#)):

They keep taking one rocket after another to the moon. For what? Why don't you worry about fixing what's happened here? As my partner, our Tadodaho always says, "Why are we the only animals on mother earth that contaminate water and then think that we are going to be able to drink from it?" What? It always brings me back to the One Dish One Spoon belt. It always brings me back to that, because we have to share the three principles of that. Leave something for someone else. You don't take more than what you need. You share what you have and keep the bowl clean.

([00:22:00](#)):

Every time I think of it, it always brings me right back to that. Why is this? This is common sense. This isn't a science. Everybody has the capability of thinking this way. Instead, it's about what this doctrine brought was about commodifying everything. It was about the enslavement of people. It was about trying to take over lands, territories, and resources. It was about all of that, all of that domination. It all goes hand in hand and it's like, how do you get other people to understand the interconnectedness of that doctrine and how it's affecting us in our daily lives today?

([00:22:49](#)):

I go back to boarding schools, mascots, Columbus statues. The list goes on and on, how we're treated in this border town community, how our children are treated. As Oren Lyons always says, "This is a value system. It's value change needed for our survival." We have to gift this to our non-indigenous brothers and sisters, because at the end of the day, we're family. Another thing he always says, "We can exchange blood. It doesn't get any closer than that. We're family." We need to knock it off and come to the realization that we're all related and start working in that mindset from that framework and pulling this down, pulling this doctrine down.

([00:23:43](#)):

I taught a class for Columbia University and OCC yesterday and watching those young people nod because they get it and they understand, and it's all through this educational acts of erasure that was set up by this system all these years to deny history. Now, what do we have? What are they calling it now? Critical race theory? Why are you trying to hide it? Are you trying to hide it because you're ashamed that

your ancestors were a part of it? Are you afraid that you're going to lose your power and control and your domination? Is that what this is?

(00:24:32):

We have to live in the truth. We have to live in that truth. Everybody needs to hear this. Everybody needs to know the factual history of what happened about Columbus, which this educational acts of erasure has constructed this worldview. It really, what it boils down to is so that Italian Americans can have their white card. They want that white privilege card. They're so afraid of not being, look, you've already been accepted into the old boys club. You don't have to worry about it anymore. How come you can't have compassion and love to understand when you were treated this way what we're going through?

Philip P. Arnold (00:25:12):

Well, that's not exactly how whiteness works. I guess probably as the white guy in the room, whiteness works is if you get in, then you defend it. You have this story of the Irish. They become these virulent in many quarters, I'll say Boston or someplace, but they become virulent white people defending those racial borders. It's an irony, I guess, of when you make it into the white club, the WASP club, that you now have the responsibility, I guess, to defend that mythology. I agree, what we're talking about here is white supremacy. That's what we're talking about. When we're mapping the Doctrine of Discovery, we're talking about white supremacy and one of the facets of it.

(00:26:12):

I often in my whole 30-year career of teaching this stuff, have, my classrooms are packed with white people. That's who we have to talk to. I realized that that's the audience that we have to address. And so, for those of us who are in classrooms like yourself, how can we better communicate the deficiencies of whiteness, the deficiencies of white supremacy? Taking a step back a little bit, because those racial barriers are so entrenched, and we could talk about the Black, white dichotomy that kind of runs the dialogue here involving indigenous peoples in that racial dialogue changes the whole kind of equation of things, which I think is one possibility. But I'm wondering from your perspective, we have to deal with this issue, this mythology, I'll say, or not mythology, really the fiction of whiteness, because we know, as you say, we can all share blood. We're all one human race, but nevertheless, going back to colonialism, whiteness has been the element that has enabled this domination code, the Doctrine of Discovery. Sorry, it's long-winded but there's a lot there.

Betty Lyons (00:27:50):

I'm glad that you're saying it that way because it helps me to try to explain what our purpose, what Sandy, myself, and other indigenous women go through in trying to explain and pulling it apart and making it understandable for these youth that have grown up in benefiting from, having this spoken in their household, their own biases, thoughts and ideas about that. Then, somewhere in there, they know that it's not right. Breaking down the fear for them, naming it. For me, it's naming it. I said to that class yesterday, what are you afraid of? Can someone please tell me what exactly are you afraid of losing? If you could explain it to me as an indigenous person, and it doesn't have to be on your own behalf, but if you could even give me an inclination of what that is, but they sell it, these politicians sell it, and that's how they're winning. They're winning these elections by selling and perpetrating this fear, and it's fascism.

(00:29:13):

When you break it down, it's fascism. And so, it's naming it and it's uncomfortable and telling them, this is going to be a real hard conversation we're about to have. It's going to be awkward, it's going to be uncomfortable, and it's necessary. You have to have your own resolution about it. You have to be able to fight for people, for other people. You have to have lead with love and compassion. It isn't, yeah, we're upset and it comes across as us being angry, but it's so much more than that when you live under this oppressive blanket where the weight is so crushing that every day, it's something that we have to fight for. We fight against, they're fighting for. How do you relate that to a younger person? It's about making sure that we get the real history out there, that we get the facts to people so that they have an understanding.

(00:30:17):

Breaking it down globally, it's capitalism. It's having them understand all of that. Those were the discussions that we were having yesterday about these oil companies, about all of that, about stifling what we know is good and right and what we're trying to do in terms of healing mother earth, because we need her. Yet this top percentage that wants what they want, they want to continue to dominate, and those one percenters telling these poor white people, "This is the problem. It's these indigenous people over here. It's these-

Philip P. Arnold (00:31:00):

Brown people.

Betty Lyons (00:31:01):

... Brown people over here, Black people over here, people of color over here." It doesn't matter. They have to blame something so that they can maintain their status, maintain their status quo.

Jordan Loewen-Colón (00:31:18):

Do you need help catching up on today's topic, or do you want to learn more about the resources mentioned? If so, please check our website at podcast.doctrineofdiscovery.org for more information. Now, back to the conversation.

Sandy Bigtree (00:31:36):

Well, gathering at the UN, I mean, we went there with you in the past, and it's astounding all these many languages of indigenous people coming from all over the world. Once they get talking, it's like the same story. It's the same story. Maybe you could talk a little bit about the permanent form and gathering of indigenous peoples.

Betty Lyons (00:31:57):

It's a beautiful space where indigenous peoples come together. Even in that space, when you mentioned that you've come with me, I need you to come with me, because it's daunting to go up against member states. Even though you're surrounded by your own people, it's having people that you're close to that can support that. And so, during that time, it's a two and a half week period where again, we're stifled. Again, we're given three minutes to make an intervention. It's changed dramatically from the beginning till now. What we're allowed to talk about, they try to pigeonhole us, which of course, we're not going to be pigeonholed into whatever their theme is. It's about a gathering for us to be able to talk about all

the issues and what you just said, that they're facing the exact same thing in their own communities and their own nations and their own territories. Some are even worse than what we're facing here.

(00:33:01):

And so, for us as Haudenosaunee people, we have to hold space for other indigenous nations and peoples, that's our job. Because yeah, people might come after us, everyone's like, "Oh, aren't you afraid of getting killed or shot?" Yeah, of course. I know that I'm tracked. I know that my partner is tracked. I know that they watch us closely. I get that. I understand that. And no, I'm not afraid of it. You pass that point of fear because this is too important. I think other indigenous peoples feel the same way from around the world, but they don't have the platform. They don't have the status that we have to be able to say what we say. It's a very different thing. And so, they come. It's nonstop.

(00:33:53):

We're trying to get out the issues that are concerning our nations, our confederacy, and yet all these other nations are coming to us for help. And so, one isn't mutually exclusive of the other. You have to do both at the same time, simultaneously, hold space, help where you can, do what you can for others as well. Their lives are at risk. Their lives are in danger. One woman from El Salvador that we were fortunate enough to be able to assist, there were many different indigenous organizations that did the lead work on it and getting a woman out of El Salvador because she was being threatened by this multinational corporation. And so, the militia came in on her and killed her brother-in-law, shot him nine times because he wouldn't give up where she was, all because she was trying to save and protect the territorial integrity of mother earth as Tupac always reminds us.

(00:35:02):

She has her own territorial integrity. Why aren't we defending that? We're worried about the borders of the US, Canada, Mexico, it's nonsense. We have that responsibility and that work happens there. The meetings, the Global Indigenous Peoples Caucus, the Global Indigenous Women's Caucus, and then even giving statements or reading statements from vulnerable indigenous peoples from other nations, because they're going to get killed if they read this statement. I know that. There are some that... even one I've offered, I'll read it for you. I'll give you cover and I'll read it for you. They're, "No, no, this one gentleman from the Russian Federation, no, I'm going to do it myself." He did it. We never heard from him again. It's real. Then, there are our member states that don't even identify that they have indigenous people, China, India. I could go on and on.

Sandy Bigtree (00:36:04):

The UN's given power to the member states to define who is indeed indigenous.

Betty Lyons (00:36:09):

Yes.

Sandy Bigtree (00:36:10):

If that isn't a reflection of that hierarchy instilled by the Doctrine of Discovery [inaudible 00:36:16].

Betty Lyons (00:36:16):

Exactly right. To that point, perfectly to that point, it was about sending us to boarding schools as my partner Roy says, to cut our tongues out so that we didn't speak our language, we didn't have our

ceremonies, we didn't do all of these things. Then, using that same criteria, taking us away from our land, dispossessing us from our lands, territories, resources, language, ceremonies, culture, all of these things. Then, this is the criteria that we're going to use now to say, to determine whether we think you're native enough. It's disgusting. There's so many indigenous nations within the United States that don't have "federal or state recognition." It's nonsense because of what they've done, tearing them down, and they've managed to stay together in communities a lot. It happens in LA and California a lot. They've managed to stay together and to fight.

(00:37:18):

North Carolina, South Carolina, New Orleans area, same thing, they've managed to stay together. They always say, "Oh, the last of this indigenous nations." Nonsense. You don't have a clue because we don't do US census. You don't even know. It's genocide. You tried to wipe us out. And now you're using that criteria to say whether we're going to, you're indigenous enough. Who are you to determine that? That's our own inherent right as indigenous nations to determine who we are as peoples. Nobody else has that right to do that for us. Nobody, as Uncle Sonny Oren always says, "Sovereignty is the act thereof. You have to act in that way."

(00:38:08):

I sat with a group that was complaining, well, they're saying that this person isn't indigenous enough. I'm like, "Wait a minute. Why are you allowing them to say it?" I said, "Is it your nation or not? Will we accept their money? Well, don't, or take their money, build something better and tell them to take off." You know what I mean? If you've already brought to that point where you've had to accept money from them, take it, build something different, and take a hike. No one should tell you who you are.

Philip P. Arnold (00:38:39):

It should be said again, the reason why you're able to do this work and the Onondaga Nation has really led all the international work at the UN is because that the leadership of the Onondaga Nation has been able to resist outside interference in their governance. Here at Onondaga, there's no BIA government.

Betty Lyons (00:39:05):

That's right.

Philip P. Arnold (00:39:06):

Still governed by this ancient what's called longhouse tradition, or by the Great Law of Peace. It's translated various ways, great binding peace. The matrilineal clan system has been able to continue to make decisions, which means you're not on the federal doll.

Betty Lyons (00:39:29):

That's right.

Philip P. Arnold (00:39:30):

And you're able to direct indigenous peoples. Even though you're federally recognized, you're still not encumbered by that federal system where virtually all other Native Nations are. I'd like you to say more about, because I'd like you to brag a little bit actually, because the American Indian Law Alliance, which you are shepherding now or you're taking care of right now is you sponsor the Global Indigenous

Women's Caucus, the Global Indigenous People's Caucus. Those are very important events that precede the UN Permanent Forum on Indigenous Issues as a way to help these other indigenous peoples from around the world understand and deal with, negotiate the UN or this enormous bureaucracy. I want to just thank you, but also just please explain, this is an enormous burden that you take on every year, and it had to change it during COVID, there's been a lot of challenges all during that, but maybe you could just talk a little more about that and because it's one of the big reasons why American Indian Law Alliance is so powerful.

Betty Lyons ([00:41:04](#)):

Well, thank you for that. That stems from my Aunt Tonya. It stems from Esmeralda Brown. I miss them both profoundly. There's not even words to say that if it wasn't for those women, we wouldn't have had either one of those convenings. That work is about bringing indigenous peoples from all over the world to get them acquainted with UN. Sometimes it's their first time coming to the UN, they don't understand the process, they don't understand something as getting their pass because they make it difficult. They make everything difficult. And so, how do you write an intervention? How do you come together collectively to make a point about what's happening, what's affecting all of us in an equal way or a shared way?

([00:42:02](#)):

The American Indian Law Alliance has paid for people to come and stay at the UN. They'll come to the UN, they have no money. Either they have no place to stay or they're staying at the [inaudible 00:42:14]. We've paid for hotel rooms, flights, meal, money. We feed them, because this is all about being part of Haudenosaunee territory. We had a lot of influence in what's now known as Manhattan. It was our responsibility to be motherly, loving, compassionate, bring them in, feed them. While I watched other organizations that had hundreds of thousands of more dollars and some millions that would refuse people's plight and request for a room, it's astounding to me. I take that responsibility very seriously. Sometimes we're sleeping five in a room. We got people on the floor. We're up all hours of the night writing till 3:00, 4:00 in the morning, and then we have to get up and be back over there first thing in the morning to deliver that statement.

([00:43:24](#)):

It's exhausting, it's exhaustive, and we do it with bare minimal people. You guys are always there to help me. Indigenous Values Initiative comes and supports us, and we have support. Tonatierra always have their support and help. If we didn't, I'm thinking of Crystal [inaudible 00:43:45], I'm thinking of Marcos out California. I'm thinking of all these people that come and help pull it all together to be able to offer that. Esmeralda's daughter is a caterer, and so we have her feed our people, and she charges us bare minimum so that we can feed more people. We always bring enough food in so they can take food with them. It's a very serious undertaking, making copies for them, help looking over what they're going to submit for their intervention and doing all that. Adam, he was a huge, beyond enormous help. Without Adam Brett, who works for the American Indian Law Alliance-

Philip P. Arnold ([00:44:42](#)):

He is the producer of this podcast.

Betty Lyons ([00:44:43](#)):

... and the producer of this podcast, there's no way that I would ever be able to do what I do. Before him was Raj Drew, who did and facilitated that work before and without these two amazing human beings busting their tails, first Roger, and then Adam took over his position when Raj left, we never would be able to do what we do. Adam helped us do this online. My grandfather was dying at the time. We had COVID. My grandfather had passed away and 93 years old, and we were taking care of him and Eevee and Adam and Crystal there, and Marcos, and there were all these people that stepped up, stepped in. Sandy and Phil, you guys did the... I know.

Philip P. Arnold ([00:45:41](#)):

Never again.

Betty Lyons ([00:45:41](#)):

I'm sorry.

Philip P. Arnold ([00:45:41](#)):

It's so amazing.

Betty Lyons ([00:45:44](#)):

I'm so sorry. It's a lot.

Philip P. Arnold ([00:45:46](#)):

Terrible, yeah.

Sandy Bigtree ([00:45:47](#)):

Terrifying.

Betty Lyons ([00:45:48](#)):

It's terrifying. It is.

Philip P. Arnold ([00:45:48](#)):

North America.

Betty Lyons ([00:45:51](#)):

It is. If you don't have alliances and people that actually give a crap about you and give a crap about the work that you're doing, what are we doing? I wouldn't have been able to do that without all of you. It would've been non-existent. The Global Indigenous People's Caucus would not have happened online this year.

Philip P. Arnold ([00:46:11](#)):

It's a multilingual thing too. I mean, just thinking about all the help that we get from-

Betty Lyons ([00:46:11](#)):

In Docip?

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Philip P. Arnold ([00:46:11](#)):

Yeah, Docip, exactly.

Betty Lyons ([00:46:22](#)):

We would be dead in the water without Docip. They are our translators. They do it for free. We don't pay them. They help us do that. Normally, we pay for the systems, translating systems when we're physically there. We didn't have to this time because it was online because of COVID. But I mean, it costs a lot of money to host that many people, to bring that many, to feed them, to pay for the space, to provide rooms for people that are in a vulnerable position. They're already in a vulnerable position. You're coming to New York City of all places for crying out loud if that's not daunting enough. Then, you're going to go into an international fora, yeah, good, great. Good luck with that.

Philip P. Arnold ([00:47:15](#)):

It's amazing what you are able to pull off every year. It's been so eye-opening for us without a doubt. I'd like to go back a little bit, because you had mentioned it a few times before, but next year we're acknowledging the 200th anniversary of Johnson v. M'Intosh, which is really the introduction of the Doctrine of Discovery into US federal law, or as one of our interviewees put it, US Federal Anti-Indian Law. It has its origins in the Marshall trilogy of those cases, beginning with Johnson v. M'Intosh. Really, what we're talking about, as you said, was the commodification of land, the commodification of the world, because previous to colonialism, there was no property here. The land was free as people were free. You belong to the land. The land did not belong to you.

([00:48:26](#)):

We're trying to make people aware of the complicated nature of the commodification of the world. That's part of the Johnson v. M'Intosh legacy. Also, connecting it with your UN work, because one of the sticky points of the UN DRIP, Declaration on the Rights of Indigenous Peoples is that free prior and informed consent. That's the sticky bit for the member states, because they want access to and the commodification of the world to continue, even though it is directly related to the destruction of the world we all inhabit together. This issue of, first of all, this kind of cultural issue of commodification, which we're all grappling with right now, but then also, to what degree are these multinational corporations part of the United Nations? They seem to be behind the curtain here pushing against indigenous people's rights. There's a lot there, but I just want to throw out this piece.

Betty Lyons ([00:49:54](#)):

Absolutely, because this is about, again, it's about capitalism and making as much money, commodifying and extracting what you can and using it for your own financial gain. These multinational corporations, Mexico, Canada, the US, they have these multinational companies, and they are the ones behind the curtain driving that bus, driving these member states to make the decisions that they make against indigenous peoples. Of course, that's what it is.

([00:50:24](#)):

What people need to understand about Justice Marshall in terms of the Doctrine of Discovery and as it relates to Indian land law. He was a landowner. And so, he had no right. He should have recused himself even from being party to that, but he drove it because he stand to gain with that decision with the very first decision that started Indian land law based on the Doctrine of Discovery in the United States. I want to kind of go back even further, that if the United States when developing their system of government,

they patterned it after ours. They thought so much of us as Haudenosaunee people and our confederacy, that they patterned their government after ours, utilizing our symbolisms, just taking it, using the different houses of government, the executive branch, the two houses. It's based on that three party system. But as [inaudible 00:51:34] says, as we all always say, it's about what they left out.

(00:51:38):

Women didn't have the right to vote till 1920, and it was only white women. It wasn't women of color. Let's start with that. How do you possibly have a democracy when you're leaving half the population out and you're leaving out the rights and role of mother earth. That's where that disconnect here on the shores of what's now known as North America, that's how it started right here. Before that, it was what you said, we belong to the land. The land didn't belong to us, a totally different concept.

(00:52:16):

It's very hard for people to understand that, but that Doctrine of Discovery imposes huge burdens around the world to indigenous people. It's used in all kinds of land law and the commodification of natural resources. New Zealand, Africa, you're seeing it now. You're seeing it in Brazil. They're cutting down the rainforest. It's the lungs of our mother. Contaminating the waters, that's the veins of our mother. What are you thinking? You know what I mean? Africa's going through a huge drought. Children are dying of starvation. They can't feed anybody because we have tipped the scale. It is totally out of balance. Humanity, mankind needs to get a grip. They need a reality check.

(00:53:08):

I think that what happens is they live in a bubble. What you're saying about, it's like they separate themselves from this. How is this from then to now, it was this is what I want. This is what Justice Marshall wanted for his own personal gain. And so, he created that. Then, it was setting the precedent for everybody else to do it too. We're going to create this little bubble for ourselves, and we're going to be able to have X, Y, and Z as a result of it, and nobody's going to come into our little bubble. The reality is that it's going to affect us all eventually the same. It's just going to hit indigenous people, people of color, poor, marginalized people first. You think they're going to care? They're going to think that they're going to escape it. That's what I'm saying to you. They don't have a sense of reality because they've kept themselves locked away in this bubble for so long.

Sandy Bigtree (00:54:19):

Protecting the hierarchy.

Betty Lyons (00:54:21):

Yes.

Sandy Bigtree (00:54:23):

The power, and Justice Marshall was the first to coin the term that Native Nations would be under the guardianship of the United States. Prior to that, it was seen as according to the treaties, that there were agreements between nations. It's really a powerful period time that he set.

Philip P. Arnold (00:54:49):

He used the Doctrine of Discovery to put native indigenous peoples in a subservient position.

Betty Lyons ([00:54:56](#)):

And domesticated, I feel like it's domesticating animals. They put us under the "guardianship." We're grazing in a field or something. That's that mindset. That's what he started, that domestication of our rights that they were going to oversee by keeping that power structure over that hierarchal system over us, and that we had to answer to it. Our nation said, "No, no, no. That's not what's going to happen." We kept our citizenship. We are not United States citizens. We do not accept federal state funding unless it was through a treaty. That's the power of who we are as Haudenosaunee people. That's like the gift that I personally would love to share and give to indigenous peoples throughout the world. You don't have to be controlled. Do we do it perfectly? No. Do we have problems? Absolutely. Just like everybody else, because at the end of the day-

Philip P. Arnold ([00:56:03](#)):

All those problems of alcohol, drug abuse, well, all those, they're rampant everywhere.

Betty Lyons ([00:56:11](#)):

They are rampant and because of the Doctrine of Discovery.

Philip P. Arnold ([00:56:15](#)):

Exactly.

Betty Lyons ([00:56:15](#)):

Right. Again, it goes right back to that. It was a form to control and to dominate. I'll give them alcohol so we can control them, give them, all of that. We can dispossess people of their lands. All of that is completely related. The lateral violence that we face now amongst our own people is it's at a tipping point I feel as well. Something has to change. The education and truth about what happened in boarding schools and how that's affected all of us as descendants, my grandmother, my grandfather going to Carlisle, my grandmother went to, forced to go to Catholic school. My partner sends his parents, both having to go to boarding school, and watching it how it's affected everyone in our family, in our immediate family.

([00:57:12](#)):

My own grandmother, I mean, to not being hugging, speaking her language freely. She would only talk to us till we got to a certain agent. If you walked in a room and she was talking to my kids, she would stop because it was beaten out of her, and all of those things, so we're dealing with this structure on so many levels and layers that it's right in your household, and yet we survive, and yet we thrive.

([00:57:49](#)):

Everyone's like, "You're stubborn." Yes, I'm stubborn. Yes, I'm determined. Yes, I'm not going to be held down, pushed down by anybody. Sandy, you can attest to this yourself, the more you get pushed down, the more you push back. We're not going to let this happen. Unfortunately, though, what I see in our communities is that we are doing it to each other, and that part of it has to stop. I think with more education that we have about what happened with boarding schools, what happened from the doctrine and all these different things, once you have that knowledge, then you can start to break it down, to fix it, to challenge it, and for it to stop.

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Philip P. Arnold ([00:58:39](#)):

I think that's a great way to conclude in a way, because we have this illusion of power, which is that the power of domination seems to be power, but it's really not. It's not really the power of the earth. It's not the power of being part of a community, of a part of an ecosystem, I guess. But then, also I'd like to conclude because I've said this before, but learning and teaching about the Doctrine of Discovery is not a pleasant thing to be talking about, but it is a liberating thing. It helps people understand that the sources of their oppression are not somehow their fault. It's something that they have inherited in various ways, for indigenous peoples one way, white people in a whole other way.

Betty Lyons ([00:59:39](#)):

And all people of color.

Philip P. Arnold ([00:59:40](#)):

And all people of color. That's a good way to conclude with this idea of helping alleviate this lateral violence that is happening in all different kinds of communities. I think the Doctrine of Discovery helps us with that to some degree. I want to thank Betty for a great conversation.

Betty Lyons ([01:00:04](#)):

Yes, thank you.

Philip P. Arnold ([01:00:06](#)):

It's been really sparky as we all knew it would be. Just thanks again for everything you do.

Betty Lyons ([01:00:12](#)):

Well, I appreciate that you guys have created a platform in which to get this out. That's the thing that needs to happen. People of all color that have also been affected by this doctrine need to hear it too. This is the perfect way. You've done a wonderful job in getting this information out, and hopefully it will continue because we need it to. Thank you so much for having me. Thank you.

Jordan Loewen-Colón ([01:00:46](#)):

The producers of this podcast were Adam DJ Brett and Jordan Brady Loewen. Our intro and outro is social dancing music by Orris Edwards and Regis Cook. This podcast is produced in collaboration with The Henry Luce Foundation, Syracuse University Department of Religion, and the Indigenous Values Initiative.